

**IN THE STATE COURT OF GLYNN COUNTY
STATE OF GEORGIA**

STATE OF GEORGIA	: CASE NO.: 24CR13237
	:
V.	:
	:
AUSTIN TYLER UNDERWOOD	:
DEFENDANT.	

DEMAND FOR DISCOVERY

NOW COMES the Defendant and demands all statutory discovery allowed under Georgia law, specifically O.C.G.A. § 17-16-21, the Defendant demands:

1. A copy of the accusation under which the Defendant is charged in the above referenced case, pursuant to State of Georgia Constitution, Art. I, Sec.I Par. XIV.
2. A complete list of witnesses upon whose testimony or evidence the State's case against Defendant is based, plus each witness' address and phone number, pursuant O.C.G.A. § 17-6-21, and Uniform Superior Court Rule 30.3.
3. A copy of all statements made by the Defendant either orally or in writing while in police custody reduce to writing, pursuant to O.C.G.A. § 17-6-21.
4. Copies of any and all scientific reports which were taken as part of the arrest procedures, while the Defendant was in police custody or which the State intends to introduce a trial either in the State's case-in-chief or in rebuttal, pursuant to O.C.G.A. § 17-6-21.

WHEREFORE, the Defendant requests that these items be deliver to the defendant's attorney at least ten (10) days prior to any pre-trial motion hearings or the trial of this case.

This June 03, 2025.

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Kathleen W. Williams
Attorney for Defendant
Georgia Bar No. 760316

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MOTION FOR DISCOVERY UNDER BRADY v. MARYLAND

This motion is made pursuant to the authority of *Brady v. Maryland*, 373 U.S. 83 (1963), *Giles v. Maryland*, 386 U.S. 66 (1967), and subsequent cases.

COMES NOW the Defendant, by counsel, and moves the Court to require the State to produce 10 days prior to trial for Defendant's inspection any exculpatory evidence within the meaning of the above referenced cases, including, but not limited to:

- (a) Any statements made by any witnesses regarding this matter which may be favorable to the Defendant's case or exculpatory in any fashion;
- (b) Any written reports, documents, or other physical evidence that may in any way tend to be favorable to the Defendant;
- (c) The results of any scientific test in the possession of the State which were performed by either the arresting officer, the testing officer, or the State Crime Lab;
- (d) All tape recordings, whether audio or video, which show the Defendant and his physical condition on the night of his arrest and detention;
- (e) All records of servicing the Intoxilyzer 9000 machine and/or Intoxilyzer 5000 machine used to test the Defendant;
- (f) All booking slips, prisoner intake forms or other processing sheets which were used to gather data about defendant prior to his being taken into custody by the police; and
- (g) Any other evidence of any kind and character discovered by, known by or available to the State or State law enforcement personnel in their investigation or interrogation of witnesses for this case, or known to them as part of their position within a state agency, that might be favorable to the defendant.

The aforesaid documents are in the possession of the State or are available to the Solicitor and are favorable or arguable favorable to the Defendant as to the issues of innocence and punishment.

WHEREFORE, Defendant requests:

- (a) That the State be required to produce for the Defendant all exculpatory evidence within a reasonable time prior to any pre-trial hearings or trial, but in no event later than ten (10) days before the case is scheduled for pre-trial hearings or called for trial;
- (b) That the Court conduct an in camera inspection of this evidence, and that Defendant's counsel be permitted to see and reproduce any evidence which the Court determines to be favorable to the defendant or which may be used to impeach any of the State's witnesses; and
- (c) That an exact copy be made of each item which is not presented to Defendant's counsel and that the same be sealed and included in the record of this case for the purpose of insuring effective review of the Court's denial of the Defendant's previous requests for disclosure.

This June 03, 2025.



Kathleen W. Williams
Attorney for Defendant
Georgia Bar No. 760316

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CERTIFICATE OF SERVICE

I hereby certify that I have this date served opposing counsel with true and exact copies of the following motions in the above referenced case at by efile/email:

1. Demand for Statutory Discovery
2. Motion for Discovery under *Brady v. Maryland*

This June 03, 2025.



Kathleen W. Williams
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